

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rachel Buhner	Team: Team # 3	CCRB Case #: 201405990	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Wednesday, 06/11/2014 11:43 PM, Wednesday, 07/09/2014 12:00 AM	Location of Incident: In the vicinity of 4492 Broadway, the 34th Precinct stationhouse	18 Mo. SOL 12/11/2015	Precinct: 34		
Date/Time CV Reported Thu, 06/12/2014 3:40 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 06/17/2014 7:32 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Joseph Burckhard	01130	941371	034 PCT
2. POM Lawrence Thomas	23859	947541	034 PCT
3. POM Vincent Dima	01682	948894	034 PCT
4. Officers			034 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM William Beattie	02878	938046	034 PCT
2. POM Edwin Florez	22262	943244	034 PCT
3. POM Joseph Ierna	08613	950612	034 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Joseph Burckhard	Abuse: On June 11, 2014, in the vicinity of 4492 Broadway in Manhattan, Sgt. Joseph Burckhard stopped § 87(2)(b)	A . Exonerated
B . Officers	Force: On June 11, 2014, in the vicinity of 4492 Broadway in Manhattan, officers used physical force against § 87(2)(b)	B . Exonerated
C . SGT Joseph Burckhard	Force: On June 11, 2014, in the vicinity of 4492 Broadway in Manhattan, Sgt. Joseph Burckhard used physical force against § 87(2)(b)	C . Unsubstantiated
D . POM Lawrence Thomas	Force: On June 11, 2014, outside the 34th Precinct stationhouse, § 87(2)(b) was hit against an inanimate object by PO Lawrence Thomas.	D . Unsubstantiated
E . POM Vincent Dima	Abuse: On July 9, 2014, in the vicinity of 4492 Broadway in Manhattan, PO Vincent Dima stopped § 87(2)(b)	E . Exonerated
F . POM Vincent Dima	Discourtesy: On July 9, 2014, in the vicinity of 4492 Broadway in Manhattan, PO Vincent Dima spoke rudely to § 87(2)(b)	F . Unsubstantiated
G . POM Vincent Dima	Abuse: On July 9, 2014, in the vicinity of 4492 Broadway in Manhattan, PO Vincent Dima threatened § 87(2)(b) with the use of force.	G . Unsubstantiated

Case Summary

On June 11, 2014, at approximately 11:43pm, § 87(2)(b) was walking down the street in the vicinity of 4492 Broadway in Manhattan, allegedly in possession of 24 ounce can of Coors beer in plain view. § 87(2)(b) observed a marked police vehicle pull up next to him and stop. When § 87(2)(b) noticed the officers, identified via the investigation as Sgt. Joseph Burckhard, PO William Beattie, and PO Lawrence Thomas from the 34th Precinct, he allegedly placed the beer on a nearby cooler and attempted to walk away. The officers exited the vehicle, and Sgt. Burckhard stopped and spoke with § 87(2)(b) and PO Thomas and PO Beattie did so at a later point (**Allegation A**).

Sgt. Burckhard asked § 87(2)(b) for identification, and § 87(2)(b) refused, allegedly multiple times. As a result, the officers attempted to place § 87(2)(b) under arrest, resulting in a physical struggle. § 87(2)(b) testified that he was punched in the left eye by Sgt. Burckhard with a closed fist; however, the investigation determined via medical records and his arrest photo that § 87(2)(b) in fact sustained injuries to his right eye. The alleged punch caused § 87(2)(b) to fall to the ground, and PO Beattie and PO Thomas then pinned § 87(2)(b) to the ground and put their knees into his back (**Allegations B and C**).

After being handcuffed and removed from the scene, § 87(2)(b) was being escorted into the 34th Precinct stationhouse. During this time, PO Thomas allegedly grabbed § 87(2)(b) by the collar of his shirt and threw him against a wall (**Allegation D**). At some point during the incident, either in the vicinity of 4492 Broadway or outside the 34th Precinct stationhouse, § 87(2)(b) sustained a laceration or swelling to his left eye § 87(2)(b). Once inside the stationhouse, § 87(2)(b) requested medical attention, and he was taken to § 87(2)(b).

On July 9, 2014, § 87(2)(b) was again in the same vicinity of 4492 Broadway in Manhattan when PO Beattie and PO Vincent Dima pulled up next to him in a marked police van and allegedly instructed § 87(2)(b) to come to the van (**Allegation E**). § 87(2)(b) complied, and PO Dima allegedly told him, “If you don’t give me your ID, I’m going to fuck you up like the other night” (**Allegations F and G**). § 87(2)(b) provided his identification, and PO Dima issued him a summons for § 87(2)(b).

Mediation, Civil and Criminal Histories

- Mediation was not offered to § 87(2)(b) due to his arrest, and the injuries that he sustained.
 - As of March 20, 2015, the New York City Office of the Comptroller confirmed that § 87(2)(b) has not filed a Notice of Claim for either incident (encl. 7D).
 - [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (encl.1E).
- Sgt. Burckhard has been a member of the NYPD for eight years, and has had 10 previous CCRB allegations involving seven cases with no substantiated allegations. § 87(2)(g)
- PO Thomas has been a member of the NYPD for six years, and has had 11 previous CCRB allegations involving seven cases with no substantiated allegations. § 87(2)(g)
- PO Dima has been a member of the NYPD for four years, and has had 17 previous CCRB allegations involving seven cases with no substantiated allegations. § 87(2)(g)

Police Documents

- On § 87(2)(b)'s arrest report, PO Edwin Florez, who was the assigned arresting officer, noted that § 87(2)(b) "§ 87(2)(a) 160.50". Furthermore, it states that physical force was used in order to restrain/control/remove § 87(2)(b).
- Swelling and lacerations are visible on § 87(2)(b)'s left eye in his arrest photo (encl. 3A).

Allegations Not Pled

- § 87(2)(g)

Finding and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) provided physical descriptions of the officers involved in both incidents, and those descriptions were cross referenced with officer photos and the roll calls from the incident dates.
- On June 11, 2014, Sgt. Burckhard, PO Beattie, and PO Thomas were partners, and acknowledged interacting with § 87(2)(b) on that date.

- On July 9, 2014, PO Dima issued § 87(2)(b) a summons, and according to his testimony, his partners on that date were PO Beattie and PO Ierna. Neither PO Ierna nor PO Beattie had an independent recollection of interacting with § 87(2)(b) on July 9, 2014; however, roll call confirmed that they were partners with PO Dima on the incident date.

Recommendations

Allegation A – Abuse of Authority: On June 11, 2014, in the vicinity of 4492 Broadway in Manhattan, Sgt. Burckhard stopped § 87(2)(b)

Allegation E - Abuse of Authority: On July 9, 2014, in the vicinity of 4492 Broadway in Manhattan, PO Vincent Dima stopped § 87(2)(b)

§ 87(2)(g)

In regards to the June 9, 2014, incident, all three officers testified that § 87(2)(b) was observed holding an open can of alcohol on the sidewalk, and that this observation was initially made by Sgt. Burckhard. When § 87(2)(b) noticed the police vehicle stopping near him, he attempted to place the can down and walk away. All three officers exited the car, and according to Sgt. Burckhard, only he approached § 87(2)(b) and the other officers watched for other passers-by and ensured no one interfered. PO Beattie and PO Thomas both testified that all three officers approached § 87(2)(b) however, Sgt. Burckhard testified that he was the officer who initially and primarily interacted with § 87(2)(b). § 87(2)(b) was asked to provide identification, he refused, and he was eventually placed under arrest.

According to § 87(2)(b) he was walking in the vicinity of 4492 Broadway when a marked NYPD car pulled up next to him and stopped. § 87(2)(b) had consumed approximately six beers while watching a soccer game, and did not have any alcohol on his person at that time. The officers approached § 87(2)(b) and Sgt. Burckhard asked § 87(2)(b) to produce his identification, which he told Sgt. Burckhard he could not do because it was in his pocket. The failure to provide identification, along with other factors that remain in dispute, led to the eventual arrest of § 87(2)(b).

In his sworn statement, § 87(2)(b) denied that he was in possession of any alcohol at the time he was stopped. However, in a phone statement provided prior to his interview, § 87(2)(b) stated that Sgt. Burckhard asked § 87(2)(b) if the beer was his, and § 87(2)(b) replied that it was (encl. 1J). Furthermore, all three officers consistently testified to seeing § 87(2)(b) with an open container of alcohol as well as his attempt to dispose of it.

On July 9, 2014, § 87(2)(b) was stopped in the vicinity of 4492 Broadway in Manhattan for allegedly being in possession of an open container. In his sworn statement, § 87(2)(b) did not contest the reason for this stop, nor did he confirm that he was in possession of alcohol at that time. However, PO Dima stated that he witnessed § 87(2)(b) with alcohol in public, and issued § 87(2)(b) a summons for § 87(2)(b). [§ 87(2)(b)] [§§ 86(1)(2)&(4)] [§ 87(2)(a)]

§ 87(2)(g)

Therefore, it is recommended that **Allegations A and E** be closed as **exonerated**.

Allegation B – Force: On June 11, 2014, in the vicinity of 4492 Broadway in Manhattan, officers used physical force against § 87(2)(b)

It is undisputed that Sgt. Burckhard, PO Beattie, and PO Thomas stopped, and subsequently arrested, § 87(2)(b) § 87(2)(g)

As stated above, after the officers exited the vehicle, Sgt. Burckhard asked for identification and, upon his refusal to provide it, was punched once in the eye with a closed first by Sgt. Burckhard. PO Beattie and PO Thomas then approached § 87(2)(b) from behind and allegedly each grabbed one of his arms. Sgt. Burckhard then instructed § 87(2)(b) to produce identification, and § 87(2)(b) said that he could not, because it was in his pocket. At this point, Sgt. Burckhard allegedly punched § 87(2)(b) in his right eye, causing him to fall to the ground on his knees. PO Thomas and PO Beattie then allegedly pinned § 87(2)(b) to the ground and put their knees in his back, and placed him in handcuffs.

§ 87(2)(g)

All three officers noted that § 87(2)(b) was observed holding an open can of alcohol on the sidewalk, and that this observation was initially made by Sgt. Burckhard. When § 87(2)(b) noticed the police vehicle stopping near him, he attempted to place the can down and walk away. All three officers exited the car, and according to Sgt. Burckhard, only he approached § 87(2)(b) and the other officers watched for other passers-by and ensured no one interfered. PO Beattie and PO Thomas both testify all three officers approached § 87(2)(b) however, Sgt. Burckhard testified that he was the officer who initially and primarily interacted with § 87(2)(b)

All three officers noticed upon approaching § 87(2)(b) that he was apparently intoxicated, noting that he smelled of alcohol, had slurred speech, and glassy eyes. § 87(2)(a) PHL § 18(6) .When asked for identification, all three officers stated that § 87(2)(b) refused. While only Sgt. Burckhard testified that § 87(2)(b) used profanity with him, all three officers stated that after being asked for identification, § 87(2)(b) attempted to walk away. While attempting to stop him from leaving, § 87(2)(b) made physical contact with one of the officers, either Sgt. Burckhard or PO Thomas, according to their testimonies. Sgt. Burckhard also stated that § 87(2)(b) was verbally combative, and at various points told him, “Fuck you, I’m going home”, “Don’t touch me, I’m gonna fucking kill you”, and various other profanities. However, neither other officer corroborates this.

Sgt. Burckhard testified that he grabbed § 87(2)(b) s arm to prevent him from leaving, and in response, § 87(2)(b) said, “Don’t touch me, I’m gonna fucking kill you”. He was then informed that if he continued to refuse to provide identification and conduct himself in this manner that he would be taken to the stationhouse. § 87(2)(b) still refused to cooperate, and Sgt. Burckhard then decided to place him under arrest.

All three officers' testimony is largely consistent in regards to placing § 87(2)(b) under arrest, and the degree to which he resisted. Sgt. Burckhard attempted to grab § 87(2)(b)'s arms, but was unable to do so because § 87(2)(b) began resisting by moving his hands violently down and to the side, as well as moving his body in order to break free. § 87(2)(a) PHL § 18(6)

According to Sgt. Burckhard, it was at this point that PO Thomas and PO Beattie noticed the struggle, and began to assist Sgt. Burckhard in arresting § 87(2)(b). All three officers stated that § 87(2)(b) resisted arrest by flailing his arms, pushing and shoving the officers, and attempting to get away. This was also noted in a memo book entry made by PO Thomas, which stated that § 87(2)(b) resisted arrest after refusing to identify himself.

As a result of the struggle, Sgt. Burckhard stated that he and another officer fell to the ground with § 87(2)(b). PO Beattie stated that he believed § 87(2)(b) fell face down, with his chest and stomach making contact with the ground; however, PO Thomas stated that § 87(2)(b) was purposefully taken to either the ground or pushed against a wall in order to gain his compliance. Despite the discrepancies amongst the testimonies, all officers agreed that § 87(2)(b)'s body did at some point come in contact with either the ground or the wall. None of the officers recalled who placed § 87(2)(b) in handcuffs. He was then transported to the 34th Precinct stationhouse by the three officers.

Patrol Guide Procedure 203-11 (encl. 0A-0B) explicitly states that all uniformed members of service are expected to use the proper amount of force under the appropriate circumstances in order to gain compliance from uncooperative civilians. Only the amount of force necessary to overcome resistance is permissible in order to affect an arrest.

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **exonerated**.

Allegation C – Force: On June 11, 2014, in the vicinity of 4492 Broadway in Manhattan, Sgt. Joseph Burckhard used physical force against § 87(2)(b)

As discussed above, § 87(2)(b) alleged that Sgt. Burckhard punched him one time with a closed fist in the right eye upon the first request to provide identification and § 87(2)(b)'s first refusal to do so. It is undisputed that § 87(2)(b) refused to produce identification, but § 87(2)(b) testified that he could not provide his identification because it was in his pocket, and was only asked once, whereas Sgt. Burckhard stated he was given multiple chances to do so, and repeatedly refused. When it became clear that § 87(2)(b) was not going to produce identification, as well as continue to try to leave the scene, he was placed under arrest, and the investigation determined he did attempt to resist.

According to Sgt. Burckhard's testimony(encl. 2S-2Y), during the altercation that ensued, he and § 87(2)(b) along with possibly one or both officers, were struggling on the ground. While Sgt. Burckhard was attempting to overcome § 87(2)(b)'s resistance, he alleged that § 87(2)(b) grabbed him by the arm and attempted to pull him closer, on the side where Sgt. Burckhard's firearm was located. In response, Sgt. Burckhard testified that he was concerned for his safety because of § 87(2)(b)'s proximity to his weapon, and in response, Sgt. Burckhard pushed away quickly from § 87(2)(b) and was successful in doing so. The struggle lasted a short while longer, and § 87(2)(b) was then handcuffed

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(g)
§ 87(2)(a) PHL § 18(6)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) Thus, it is recommended that **Allegation C** be closed as **unsubstantiated**.

Allegation D – Force: On June 11, 2014, outside the 34th Precinct stationhouse, § 87(2)(b) was hit against an inanimate object by PO Lawrence Thomas.

§ 87(2)(g) it is undisputed that PO Thomas was involved in the arrest of § 87(2)(b) § 87(2)(g) § 87(2)(g). According to his testimony, PO Beattie could not recall who walked § 87(2)(b) into the stationhouse, though he stated it was probably not him. However, he did state that he witnessed § 87(2)(b) being escorted inside, and he did not observe any officer grab § 87(2)(b) by the collar or throw § 87(2)(b) into a wall.

Sgt. Burckhard stated that he believed PO Beattie and PO Thomas escorted § 87(2)(b) into the stationhouse, but did not witness them do so, nor did he witness PO Thomas or any other officer throw § 87(2)(b) into a wall while walking him inside. PO Beattie could not recall which officer escorted § 87(2)(b) into the stationhouse, but stated he did not believe he did so himself. He also testified that he did not see PO Thomas or any other officer throw § 87(2)(b) against a wall while he was being taken inside.

§ 87(2)(g)

Therefore, it is recommended that **Allegation D** be closed as **unsubstantiated**.

Allegation F—Discourtesy: On July 9, 2014, in the vicinity of 4492 Broadway in Manhattan, PO Vincent Dima spoke rudely to § 87(2)(b)

Allegation G—Force: On July 9, 2014, in the vicinity of 4492 Broadway in Manhattan, Vincent Dima threatened § 87(2)(b) with the use of physical force.

It is undisputed that PO Dima interacted with § 87(2)(b) on the incident date in the vicinity of 4492 Broadway in Manhattan. § 87(2)(g)

According to PO Dima's testimony (encl. 2F-2G), he was riding in the front seat of a marked NYPD van, though he could not recall which officer was driving. PO Dima observed § 87(2)(b) on the sidewalk with a 24 ounce Coors from approximately 50 feet away. PO Dima informed his partners, PO Beattie and PO Joseph Ierna, what he witnessed, and told the driver to pull over next to § 87(2)(b)

All three officers exited the vehicle, and upon noticing the officers, § 87(2)(b) attempted to put the beer down. PO Dima then asked § 87(2)(b) for his identification, which he provided. PO Dima ran a warrant check which came back negative, issued § 87(2)(b) a summons (encl. 3K), and left the location. PO Dima did not tell § 87(2)(b) to give him his ID or that he was going to "Fuck him up like the other night", nor did he use any profanity with § 87(2)(b) or threaten him with the use any force. Neither PO Ierna nor PO Beattie interacted with § 87(2)(b) during the incident, and both PO Ierna and PO Beattie did not have an independent recollection of the incident, despite being provided a summary of the incident and being shown the summons issued to § 87(2)(b)

In his sworn statement, § 87(2)(b) testified that the van pulled up next to him and PO Dima instructed him to come over to the vehicle. § 87(2)(b) stated that only PO Beattie and PO Dima were present, and that neither officer exited the vehicle at any point. After § 87(2)(b) arrived to the van, PO Dima allegedly said, "If you don't give me your ID, I'm going to fuck you up like the other night". However, § 87(2)(b) also acknowledged that PO Dima was not present for the June 11, 2014 incident, and did not indicate how he believed PO Dima knew of the encounter. § 87(2)(b) testified that he was issued a summons for § 87(2)(b), and that the officers left thereafter. He also did not mention a third officer being present during the incident, or interacting with anyone other than PO Dima and PO Beattie.

§ 87(2)(g)

Therefore, it is recommended that **Allegations F and G** be closed as **unsubstantiated**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date